

26SMCV00725 26SMCV00725

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Case Number: 26SMCV00725 Hearing Date: August 28, 2026 Dept: P

Tentative

Ruling

Layla

Ayoub, et al. v. Lotus West Properties, Inc., et al., Case No. 26SMCV00725

Defendant's

Motion to Strike Punitive Damages

Hearing

Date: August 28, 2026

Background

Plaintiffs

Layla Ayoub, Kaitlyn Fletcher, and Kailyn Kennada sued Defendants Lostus West Properties, Inc.; NNF Levering, LLC; TRF Levering, LLC; SFF Levering, LLC; MRL Levering, LLC; AJL Levering, LLC; and LNL Levering, LLC for (1) private nuisance, (2) negligence, (3) breach of warranty of habitability, (4) breach of the covenant of good faith and fair dealing, (5) breach of implied covenant of quiet enjoyment, and (6) intentional infliction of emotional distress.

Plaintiffs allege that Defendants, Plaintiffs' landlords at 610 Levering Ave., Unit 401, Los Angeles, CA failed to maintain the subject property and failed to remediate mold, mildew, plumbing issues, water leaks, dishwasher leaks, and clogged sinks. (Complaint, ¶ 2.)

On

February 13, 2026, Plaintiffs filed the complaint.

On May 14, 2026, Defendants filed this Motion to Strike Punitive Damages. On July 21, 2026, Plaintiffs filed opposition. On August 20, 2026, Defendants filed a reply.

In their motion to Strike, Defendants argue that the complaint alleges a failure to remediate habitability issues that does not rise to the level necessary to state a claim for punitive damages on their claims for private nuisance, negligence, and intentional infliction of emotional distress.

In opposition, Plaintiffs argue that a California landlord's failure to repair can support a claim for punitive damages and because Plaintiffs' claims for punitive damages were properly pleaded. In the alternative, Plaintiffs request leave to amend.

In reply, Defendants argue that Plaintiffs' caselaw predates the legislature's amendment to section 3294 to define malice, which now must be established by clear and convincing evidence. Defendants argue that Plaintiffs' allegations of malice are conclusory.

Governing
Law

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP, § 435(b)(1); CRC, rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP, § 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)~~~~~

"Where the

defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

Discussion

Defendants move to strike the following from Plaintiff's Complaint:

1.

Civil

Cover Sheet, Remedies Sought: Punitive.

2.

Page

19, paragraph 111, lines 10-17: "DEFENDANTS' conduct was and continues to be oppressive and malicious within the meaning of California Civil Code § 3294 and has subjected PLAINTIFFS to cruel and unjust hardship in willful and conscious disregards of PLAINTIFFS' rights to safety, thereby entitling PLAINTIFFS to an award of punitive damages. Specifically, even though DEFENDANTS were aware of the dangerous conditions at the PREMISES, some of which directly affected the health of the PLAINTIFFS, DEFENDANTS, either intentionally or negligently failed to make timely repairs, and/or consciously disregarded PLAINTIFFS' health and safety. DEFENDANTS acted despicably and consciously disregarded Plaintiffs' rights, health, and safety."

3.

Page

19, paragraph 113, lines 23-26: "As a result of DEFENDANTS' acts and omissions, PLAINTIFFS did suffer severe emotional distress, mental stress, annoyance, discomfort, aggravation, humiliation, degradation, and embarrassment, thereby entitling PLAINTIFFS to punitive damages according to proof at trial."

4.

Prayer

for Relief 3, page 20, lines 6-7: "Punitive damages according to proof for each cause of action, in an amount to be determined at trial;"

Defendants assert the complaint fails to allege malice, fraud, or oppression toward Plaintiff with the requisite specificity to support a claim for punitive damages.

To state a claim for punitive damages under Civ. Code section 3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. (Smith v. Superior Court (1992) 10 Cal. App. 4th 1033, 1042.)² The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. (Ibid.)³ “Malice” is defined in Civ. Code § 3294 (c)(1) as “conduct which is intended by the defendant to cause injury” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” “Oppression” is defined as “despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(2).) The term “despicable” has been defined in the case law as actions that are “base,” “vile,” or “contemptible.” (Shade Foods, Inc. v. Innovative Products Sales & Marketing, Inc. (2000) 78 Cal.App.4th 847, 891.) Fraud means “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294(c)(3).)

Plaintiffs allege that after multiple maintenance requests and reports to the LA Department of Public Health, Defendants have failed to remediate mold and mildew and repair water damage and leaking or clogged fixtures. (Complaint, ¶¶ 32-50.) Plaintiffs allege that Defendants’ failure to repair the premises have created slum-like conditions. (Id. at ¶ 5.) Though Plaintiffs allege that Defendants intentionally disregarded maintenance requests and habitability issues, and that their “intentional failure to address” habitability issues “subjected Plaintiffs to cruel and unjust hardship,” Plaintiffs do not allege that Defendants intended to cause Plaintiffs harm or engaged in despicable conduct with a conscious disregard for Plaintiffs’ safety and therefore do not allege facts to support their claim for malice. (See Complaint, ¶ 40.) Plaintiffs’ case law is also distinguishable— both cases were decided under an older definition of malice. (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210-1211 [finding that after the statute was amended in 1987, the legislature increased

the burden of proof for malice and required despicable and willful conduct to claim malice]; *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 913, 921 [primarily holding that a tenant can claim tort damages, including punitive damages, against a landlord]; *Aweeka v. Bonds* (1971) 20 Cal. App. 3d 278, 280 [finding that a plaintiff could seek punitive damages where the Defendant evicted plaintiffs by unreasonably increasing their rent after they requested maintenance.].)

Leave to Amend

Plaintiffs' allegations that the property was in slum-like condition and their allegations that Defendants persistently failed to maintain the property show a reasonable likelihood Plaintiffs will be able to state a claim if given leave to amend.

Conclusion

Defendants' Motion to Strike is
GRANTED with leave to amend.